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Chapter 9 - Evaluation of Education Credentials

Guidance

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In cases involving foreign degrees, officers may favorably consider a credentials evaluation performed by an independent credentials evaluator who has provided a credible, logical, and well-documented case for such an equivalency determination that is based solely on the alien's foreign degree(s).^[1]

In addition, officers may accept a comparable evaluation performed by a school official who has the authority to make such determinations and is acting in his or her official capacity with the educational institution.^[2]

Officers should consider the opinions rendered by an education credential evaluator in conjunction with a review of the beneficiary's relevant education credentials and other available credible resource material regarding the equivalency of the education credentials to college degrees obtained in the United States. Opinions rendered that are merely conclusory and do not provide a credible roadmap that clearly lays out the basis for the opinions are not persuasive.

Any educational equivalency evaluation performed by a credentials evaluator or school official is solely advisory in nature; the final determination continues to rest with the officer.^[3]

Footnotes

^[^ 1] For information on the specific educational requirements for professional and advanced degree professionals, see Part F, Employment-Based Classifications, Chapter 5, Advanced Degree or Exceptional Ability [[6 USCIS-PM F.5](#)], Chapter 6, Physician [[6 USCIS-PM F.6](#)], and Chapter 7, Skilled Worker, Professional, or Other Worker [[6 USCIS-PM F.7](#)].



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[^2] For the advanced degree and professional classifications, the beneficiary's educational credentials must be equivalent to a U.S. degree. See [8 CFR 204.5\(k\)\(2\)](#) and [8 CFR 204.5\(l\)\(2\)](#).

[^3] See [Matter of Caron International \(PDF\)](#), 19 I&N Dec. 791 (Comm. 1988). See [Matter of Sea, Inc. \(PDF\)](#), 19 I&N Dec. 817 (Comm. 1988). See [Matter of Ho \(PDF\)](#), 19 I&N Dec. 582 (BIA 1988).

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